

CONTRACT: Vendor Agreement - Infosys

Contract Details

Contract ID	C-007
Vendor	Infosys Ltd
Expiry Date	2024-11-15
Version	v1.5
Status	Expired
Risk Level	High
Created By	Anjali Rao
Uploaded Date	2023-11-01

Contract Content

Vendor Agreement - Infosys

Contract ID: C-007

This Vendor Agreement ("Agreement") is entered into as of the Effective Date by and between Infosys Ltd, a company incorporated under the laws of India with its principal office at [Insert Address] ("Vendor"), and [Insert Company Name], a company incorporated under the laws of [Insert Jurisdiction] with its principal office at [Insert Address] ("Company").

WHEREAS, the Company desires to engage the Vendor to provide certain goods and services as described herein, and the Vendor agrees to provide such goods and services under the terms and conditions set forth in this Agreement.

NOW, THEREFORE, in consideration of the mutual covenants and promises contained herein, the parties agree as follows:

1. Definitions

1.1 "Acceptance Criteria" means the standards and requirements specified by the Company for the goods and services provided by the Vendor under this Agreement.

1.2 "Confidential Information" means all non-public information disclosed by one party to the other, whether orally or in writing, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure.

1.3 "Effective Date" means the date on which this Agreement is signed by both parties.

1.4 "Term" means the duration of this Agreement as specified in Clause 4.

2. Scope of Services

2.1 The Vendor shall provide the goods and services described in Exhibit A ("Services") in accordance with the Acceptance Criteria and any specifications provided by the Company.

2.2 The Vendor shall perform the Services in a professional and workmanlike manner and in compliance with all applicable laws and regulations.

3. Term and Termination

3.1 This Agreement shall commence on the Effective Date and shall remain in effect for a period of [Insert Duration] unless terminated earlier in accordance with this Clause.

3.2 Either party may terminate this Agreement for convenience upon thirty (30) days' written notice to the other party.

3.3 Either party may terminate this Agreement immediately upon written notice if the other party breaches any material term of this Agreement and fails to cure such breach within fifteen (15) days of receiving notice of the breach.

3.4 Upon termination, the Vendor shall cease all Services and deliver to the Company any work product or materials created under this Agreement.

4. Fees and Payment

4.1 The Company shall pay the Vendor the fees set forth in Exhibit B ("Fees") for the Services provided under this Agreement.

4.2 The Vendor shall submit invoices to the Company on a monthly basis, and the Company shall pay all undisputed invoices within thirty (30) days of receipt.

4.3 The Company reserves the right to withhold payment for any Services that do not meet the Acceptance Criteria.

5. Confidentiality

5.1 Each party agrees to maintain the confidentiality of the other party's Confidential Information and to use such information solely for the purposes of this Agreement.

5.2 Confidential Information shall not include information that is publicly available, independently developed, or lawfully obtained from a third party.

6. Data Protection

6.1 The Vendor shall comply with all applicable data protection laws and regulations in connection with the processing of any personal data under this Agreement.

6.2 The Vendor shall implement appropriate technical and organizational measures to protect personal data against unauthorized access, loss, or destruction.

7. Intellectual Property

7.1 All intellectual property rights in any materials or work product created by the Vendor under this Agreement shall vest in the Company upon payment of the applicable Fees.

7.2 The Vendor represents and warrants that the Services and any deliverables provided under this Agreement do not infringe the intellectual property rights of any third party.

8. Warranties

8.1 The Vendor warrants that the Services shall conform to the Acceptance Criteria and shall be performed in a professional and workmanlike manner.

8.2 The Vendor warrants that it has the necessary rights, licenses, and permissions to perform the Services and provide the deliverables under this Agreement.

9. Liability Limitation

9.1 Except for liability arising from gross negligence, willful misconduct, or breach of confidentiality, neither party shall be liable to the other for any indirect, incidental, or consequential damages arising out of or related to this Agreement.

9.2 The total liability of each party under this Agreement shall not exceed the total Fees paid by the Company to the Vendor during the twelve (12) months preceding the claim.

10. Indemnity

10.1 The Vendor shall indemnify, defend, and hold harmless the Company from and against any claims, damages, or liabilities arising from the Vendor's breach of this Agreement or its negligence or misconduct in performing the Services.

11. Governing Law

11.1 This Agreement shall be governed by and construed in accordance with the laws of [Insert Jurisdiction], without regard to its conflict of laws principles.

12. Dispute Resolution

12.1 Any dispute arising out of or in connection with this Agreement shall first be resolved through good faith negotiations between the parties.

12.2 If the dispute cannot be resolved through negotiations within thirty (30) days, the parties agree to submit the dispute to binding arbitration in accordance with the rules of [Insert Arbitration Institution].

13. Miscellaneous

13.1 Entire Agreement: This Agreement constitutes the entire agreement between the parties and supersedes all prior agreements, understandings, or representations.

13.2 Amendments: This Agreement may only be amended by a written document signed by both parties.

13.3 Assignment: Neither party may assign or transfer its rights or obligations under this Agreement without the prior written consent of the other party.

13.4 Notices: All notices under this Agreement shall be in writing and delivered to the addresses specified above.

13.5 Severability: If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

[Signature Block for Company]

[Signature Block for Vendor]